



File No.: EXP202306308

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FIRST: Agreement to initiate preliminary investigation proceedings by the Director of the AEPD dated 2/08/2022.

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SECOND: Preliminary investigation proceedings

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THIRD: On 27/07/2023, the Director of the AEPD agreed:

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RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following BACKGROUND

FIRST: Agreement to initiate preliminary investigation proceedings by the Director of the AEPD dated 2/08/2022.

On 2/08/2022, the Director of the AEPD sent a letter to the General Subdirectorate of Inspection indicating:

“With the registration number at the AEPD headquarters: ***REFERENCE.1, a possible infringement in the processing of personal data has been reported” concerning the fact that several media outlets disseminated on their websites the (...) of the statement before the judge of a victim of multiple rape, to illustrate the news related to the holding of the trial, in a case that was highly publicized.

The complainant provided links to news disseminated on the websites of the media.

“However, the emergence of new content and new responsible parties makes it necessary to investigate the facts and their authorship.”

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Therefore, it is urged “the General Subdirectorate for Data Inspection to initiate ex officio Preliminary Investigation Proceedings aimed at substantiating these facts.”

The record ***REFERENCE.1 reveals the entry of a complaint before the Spanish Agency for Data Protection dated 04/08/2021, from A.A.A., which was followed by another on 10/05/2021. The complaint was filed “because several media outlets published on their websites the (...) of the statement before the judge of a victim of a multiple rape, to illustrate the news regarding the trial held last month, in a case that was highly publicized.”

SECOND: Preliminary Investigation Proceedings

The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGD, being aware of the following points:

- 1- “On 11/08/2022, evidence of the publication of a video at the URL ***URL.1, captured on 21/07/2022, was incorporated into the file, published by the profile “B.B.B.” where the text “***TEXT.1” appears below the video. The publication date is also recorded as ***DATE.1,” and “(...) views.”
- 2- On 04/08/2022, a request was made to GOOGLE IRELAND LIMITED for the deletion of the content accessible at the URL ***URL.1.

In the text of the document, it states “agreement to adopt a provisional measure,” regarding the aforementioned address that refers to the processing of personal data of the victim of a multiple rape in ***LOCALITY.1. In this case, the voice of the victim is heard, and the voice is a personal data.”

On 10/08/2022, a response letter was received from GOOGLE, informing that:

“GOOGLE IRELAND, in application of the Privacy Guidelines and Community Standards of YouTube and in accordance with the issued agreement, has proceeded to remove the video titled “***TEXT.1” published on the channel “B.B.B.” on ***DATE.1 and which was accessible through the following URL: - ***URL.1,”

The Inspection Service verified on 11/08/2022 that the aforementioned URL has been deleted, carrying out diligence on 12/08/2022, in which the cited link does not appear.

- 3- As a result of the information request made to B.B.B. (the respondent) on 08/11/2022 by the Inspection, the AEAT sent this Agency information regarding its identification.

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- 4- On 10/01/2023, the following was recorded:

- a. Access to YOUTUBE, user “B.B.B.,” where the address ***URL.2 appears, containing a publication by the user, and among the comments on the publication, another user states “(...)”. There is a response from the user “B.B.B.” with the text “Thank you very much [...]”
- b. That on the website ***URL.3, there is a finalist named B.B.B., lawyer (...).

- 5- On 10/02/2023, the respondent was requested, as an information requirement in the preliminary investigation proceedings, to report on:

“publication, on their YouTube profile named “B.B.B.”, dated ***DATE.1, of a video located at the URL ***URL.1 where it states, below the video, the text “***TEXT.1”;

“1. Justify the legal basis for making the aforementioned publication.”

A response was obtained on 06/03/2023, in which the respondent sent this Agency the following information and statements:

“That they are a social activist” and since 2019, they have participated in the national Association

“***ASSOCIATION.1,” which, among its statutory purposes, includes; the fight against corruption and in favor of citizen participation, the defense of whistleblowers of corruption, fighting against judicial injustice, and promoting a new concept of justice.”

They state: “That the video in question was published on my YouTube profile until February 23, but has been removed from the platform due to the course of a third-party complaint.”

”That the video is a fragment of the video, (...).

“That in said video the trademark of said newspaper could be seen.”

“That the content of the video is identical to that published by various platforms:

(...)

“That with its redistribution no profit was pursued and that they have never monetized any of their videos. That the superior interest is the defense of the rights of the victim and to expose the little sensitivity and empathy shown by some members of the ministry (...) towards certain people or groups.”

“It is true that with the title of the video, they criticized the actions of this (...), but always under the constitutional framework that enshrines freedom of expression. Furthermore, with its publication, no rights of the (...) or the parties are harmed, as our legislation supports the publicity of procedural acts, as recorded in Articles 24.2 and 120.1 of the Spanish Constitution.

“The principle of the publicity of trials, guaranteed by the Constitution (art. 120.1), implies that they should be known beyond the circle of those present, potentially having a general projection. This projection can only be made effective with the assistance of the media, as such presence allows them

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to acquire information at its source and transmit it to those who, due to a series of space, time, distance, and activity imperatives, are unable to do so. This role of natural intermediary played by social media between the news and those who are not, thus, in a position to know it directly, is heightened concerning events that by their nature may affect everyone and therefore resonate particularly within the social body.” In the case of the video in question, it corresponds to the trial phase and was reproduced by the media.

This collision of rights has been continuously analyzed in repeated rulings by the Constitutional Court. In fact, already in ruling 6/1981 of the TC, the significance of exercising freedom of expression and information was highlighted as one of the pillars of a free and democratic society, such that truthful information regarding matters of general interest or public relevance is constitutionally protected.”

”That such criticism is part of their constitutionally recognized rights” ”in article 20.1 a of the Constitution and the freedom of expression in article 10 of the Convention for the Protection of Human Rights and Fundamental Freedoms.”

”It is evident that the rights to privacy and image of all individuals who come to the Administration of Justice and have a protectable right must be guaranteed, but in a balanced manner, as established by the Constitutional Court and, of course, also relying on the ethics and good practices of journalism. In this particular case, this was done, following the recording provided by the court (...)

of the

Court of

***LOCATION.2

that allowed the publicity of the procedural act in question.”

2- Regarding “legitimacy for publication,” it states:

”Social activists enjoy special protection from the European Court of Human Rights (ECHR), which attributes to us a ‘watchdog’ role, overseeing the actions of Public Administrations, equating us to a mass dissemination medium, a consideration reached in the case Gra Stiftung Gegen Rassismus und Antisemitismus v. Switzerland, January 9, 2018.

The importance of social media in a democracy has been particularly emphasized by the ECHR, which graphically attributes to them the quality of 'watchdog' of the rights and freedoms of citizens (see ECHR judgments of June 25, 1992, case Thorgeir Thorgeirson v. Iceland, and March 29, 2001, case Thoma v. Luxembourg, among others).

"As for the level of protection of freedom of expression, there exists a minimum scope under article 10.2 of the Convention for the Protection of Human Rights and Fundamental Freedoms, to restrict debate on matters of public interest. Therefore, a high level of protection is granted to freedom of expression, which consequently means that authorities have a particularly restricted margin of appreciation when comments affect matters of public interest, as is especially the case with expressions regarding the functioning of the judiciary, even in the context of still pending proceedings concerning other defendants. The degree of hostility and the potential severity of certain...

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Comments do not impede the right to a high level of protection of freedom of expression, in light of the existence of a matter of public interest (see *Paturel v. France*, no. 54968/00, § 42, of December 22, 2005, and *Morice [GC]*. The exception could be the case of severely harmful attacks that lack a basic foundation; judges as such may be subject to personal criticism within permissible limits, and not only in a theoretical and general manner. When acting in their official capacity, they may be subject to broader limits of acceptable criticism than other citizens. However, in this case, it is established that the criticism falls within the parameters of freedom of expression.

Furthermore, insofar as the dissemination of the video pursued legitimate aims, the general principles applicable must be assessed to balance the right to freedom of expression against the "protection of the reputation or rights of third parties," as summarized in *Perinçek*, § 198, and *Medilis Islamske Zajednice Brčko and others v. Bosnia and Herzegovina [GC]*, no. 17224/11, § 77, of June 27, 2017). In order for Article 8 to come into play, the attack on personal reputation must reach a certain level of severity (see *Axel Springer AG v. Germany [GC]*, no. 39954/08, § 83, of February 7, 2012; *Bédat v. Switzerland [GC]*, no. 56925/08, § 72, of March 29, 2016);

The respondent reiterates that "The publicity of the process is also configured as a fundamental right." The respondent states that "The jurisprudence of the Supreme Court also strongly emphasizes the connection between the principle of procedural publicity and the right to receive information. Thus, the STS 1646/1994, of 16/09 declared that justice in the plenary phase must be administered in such a way that citizens and the media, which are indispensable and specially qualified vehicles of connection between centers of power and the citizenry, can witness them. Every act, by virtue of being public, reaches a dimension of control, oversight, and supervision that is lacking in those carried out privately or without publicity. In the same vein, STS 168/1995, of 14/02 can be noted.

"In this same line, the Recommendation (2003) of the Committee of Ministers of the Council of Europe on information in the media about criminal proceedings, adopted on July 10, 2003, states in its first principle that the public must be able to receive information about the activities of judicial authorities and police services through the media. Therefore, journalists must be able to freely inform and comment on the functioning of the criminal justice system, subject only to the limitations mentioned in the Recommendation itself.

Internal publicity is built upon the right of the parties to access all judicial proceedings. This dimension falls outside the scope of procedural publicity, connecting instead with the right of defense and the principle of equality of arms. Proper publicity, connected with the fundamental right to disseminate and receive truthful information freely, leads to a distinction between external publicity.

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immediate, referring only to the persons who can directly witness the procedural acts, and external mediate publicity, which allows through the media to become aware of the proceedings by an indeterminate number of people.”

“The doctrine of the Prosecutor’s Office, Instruction 3/2005, of 7/04, regarding the relations of the Ministry (...) with the media, establishes that the publicity of trials cannot be understood as satisfied by immediate publicity, but it is necessary to guarantee mediate publicity. Therefore, journalists must be recognized the right to inform about judicial proceedings and to criticize the functioning of the Administration of Justice. In addition to satisfying the right to inform and to receive information, the beneficial effects of this external mediate publicity, provided by the media, can be multiple: thus, they can generate effects of general prevention, renewing the validity of criminal norms, aiding in the promotion of citizens’ fidelity to the norms, fostering trust in the criminal justice system, and visualizing before society the behaviors that are criminally reproachable.”

The respondent states that: “no protected right has been violated with the rebroadcasting of an informative video, which has special public interest, as it shows the development of an oral trial and the functioning of justice. As stated in STC 178/1993, of 31/05: ‘it cannot be denied that there is newsworthy interest in facts or events of criminal relevance. The very existence of a criminal process interests the public opinion and, consequently, information about such facts is included within the scope of protection of article 20.1.d) CE. The right to receive truthful information regarding judicial matters thus converges with the principle of publicity, established by article 120.1 CE.’”

The respondent states that: “he suffers from a campaign of harassment and stalking, a situation for which there is a complaint and preliminary proceedings have been opened by the investigating court No. 4 of ***LOCALITY.3.”

He requests a copy of the administrative file.

THIRD: On 27/07/2023, the Director of the AEPD decided:

“FIRST: TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringement of article 5.1.c) of the GDPR, in accordance with article 83.5.a) of the GDPR, classified for the purposes of prescription as very serious in article 72.1.a) of the LODGDD.

SECOND: To confirm the provisional measures imposed contained in the letter addressed to GOOGLE on 4/08/2022, regarding the video located at: ***URL.1

...

FIFTH: THAT for the purposes provided in article 64.2 b) of law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations, (hereinafter, LPACAP), the sanction that may correspond would be an administrative fine of 10,000 euros, without prejudice to what results from the instruction.”

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FOURTH: Allegations to the initiation agreement

On 3/08/2023, the respondent stated:

1 - “In the initial writing, we requested a copy of the file that initiates the present procedure,” which “has still not been provided,” causing him defenselessness and limitation of his defense rights. He requests a copy of the file in order to analyze the methodology followed by the Agency to locate the sources, given that it seems the complaint is directed against the media and not against individuals, pointing out that it may be a “prospective investigation” prohibited by the legal system. He doubts that the complaint was against him, “due to the limited reach that my YOUTUBE channel has, as you yourselves recognize by the number of views that the video in question reached of (...) views.”

- Expiration of prior proceedings, as “the complaint presented by A.A.A. was on April 8, 2021, and another followed on May 10, 2021, which was sent to the General Subdirectorate of Inspection with a letter dated August 2, 2022, and this party was required to make allegations on February 10, 2023.”

“Article 122.4 of Royal Decree 1720/2007 of 21/12, Regulation for the development of the LOPD

(RLOPD) in force in all that does not contradict, oppose, or prove incompatible with the provisions of the RGPD and the LOPDGDD, determines that 'The expiration of the term without a sanctioning procedure initiation agreement being issued and notified will result in the expiration of prior proceedings.'

2 - Incorrect weighting of the rights of freedom of expression and information, which have a prevailing position and weight when they come into conflict, which implies their breach. He adds that they must prevail when they come into conflict with the right to honor, reaching their maximum level when exercised by professionals of the press, (STS No. 482/2014, of 24/09, ECLI: ES:TS:2014:3544), or the right to one's own image, indicating the ruling of TS No. 252/2021 of 4/05, which states that: "starting from the autonomy of the right to one's own image, a person's interest in preventing the dissemination of their image should only yield to the existence of a prevailing public interest or in the presence of circumstances legitimizing the intrusion."

Furthermore, he adds that the fragment of the video "in question" is the property of the newspaper ***PRENSA.1, protected by the publicity of procedural acts, as enshrined in the Spanish Constitution, articles 24.2 and 120.1.

3 - "Breach of community law," for violating the doctrine "of the European Court of Human Rights that weighs the right to respect for privacy against the right to freedom of expression, developing criteria that must be taken into account, specifically the contribution to a debate of general interest, the notoriety of the affected person, the subject of the report, the previous behavior of the interested party, the content, the form and repercussions of the publication, the manner and circumstances in which information was obtained and its veracity (see, in this regard, the judgment of the ECHR of June 27, 2017, Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland, CE:ECHR:2017:0627JUD000093113, paragraph 165)." Likewise, consideration should be given to the possibility that the responsible party of

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treatment adopt measures that allow mitigating the scope of the interference with the right to privacy. In this case, the weighting carried out by the AEPD is mistaken considering that the recording I share is a fragment of the report published for journalistic purposes by the newspaper ***PRENSA.1, which has a duration of 4.44 minutes, which is information of public interest and truthful, and that the court itself and the media took measures to mitigate the interference with the victim's privacy by keeping her image hidden during the recording and her name. Except for the voice, but I must clarify that the voice as a communication instrument, depending on the circumstances, suffers modifications, alterations, changes in registers, etc.

4 - It provides as document 1, an article from the news daily "20 minutos" dated 03/16/2019, about "forensic acoustics," which informs what the Police can discover through the voice. "The Police have been preparing the 'vocal passport' for 30 years, defining different traits that can be revealed through the voice, which can serve to identify suspects." "Variables such as timbre, tone, intonation, cadence, or the loudness of certain sounds can reveal a person's social stratum, their emotions." "They examine multiple factors, initially the 'information called resonance,' which comes directly from our vocal tract, and in addition to the physical axes: frequency, intensity, and time, in speech there is a fourth factor: the resonant cavity of the tract, which provides decisive elements from the perspective of identification." "One can know what the true voice is when someone plagiarizes another person's because they simulate traits of another person's speech," or "test differences among people by their voices," or "discover factors of the voice, and from it build identity."

It requests collaboration "from the Department of Acoustics of the National Police, to issue an expert report to determine whether the recorded voice presents no natural or artificial alteration that allows for its identification."

It adds in relation to this, that "The voice in the recording does not allow for the identification of the victim. No one questions that in the recording provided by the newspaper ***PRENSA.1, the broken

and pained voice of a woman, a victim of an abominable crime, is heard. We understand that this is the result of the emotional and psychological wear that her appearance before the court entailed, and especially having to respond to the execrable questions of a (...), who is little empathetic with the victim. Stress and anguish are a natural factor of alteration of her vocal cords, of the vocal tract, etc. The variation of the physical axes that dimension the sound of the voice —frequency, intensity, and time— must also be taken into account. The voice becomes denatured. Therefore, it is a complex task to recognize a person simply by the modulation of their voice, especially if it is an anonymous person. A person's voice is not a fixed image that allows for identification. The technique of identifying someone by their voice is much more complex, as recognized by the experts of the Department of Forensic Acoustics of the National Police, in a report for the newspaper 20 minutos, “it is the most complex of those developed in the forensic acoustics laboratory of the Police, located in the Madrid complex of Canillas, and made up of physicists, linguists, phoneticians, speech therapists, or sound engineers, who, in addition to having trained ears and keen eyes, apply above all complex scientific techniques.” D.D.D., (...), explains: “The work of these forensics is more difficult when that voice is altered consciously or simply due to external causes, such as a cold or a...”

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aphonia because the timbre, for example, becomes denatured. This circumstance may occur in the video in question. Its nuances do not seem natural and have an artificial touch. Precisely in this last aspect, the variable nature of a person's speech lies the complexity of forensic acoustic analyses.” Even the technical devices used for recording produce an alteration in sound and modulation of the voice. I, who have appeared on various occasions before the courts of justice, have been able to appreciate that my voice is usually deepened by the recording resources of the courtroom. Although it is the voice of a woman, it is the variable nature, the external factors, and the recording itself that prevent determining who it is, unless a phonogram is available or an expert analysis is conducted.” He states that “The processing of the data has not been excessive, as we see it is not possible to identify the victim.”

5 - He acted under the belief that the video, owned by the “newspaper ***PRESS.1, hosted on my profile, was made under the understanding –albeit erroneous– of complying with all standards regarding the protection of personal data. There has never been any bad faith on my part with the dissemination of the trial fragment (...) from ***LOCALITY.1. On the contrary, I specifically resort to a media outlet of recognized prestige to share its content, understanding that they have taken measures to mitigate the infringement of the victim's rights. As I have stated, I have not monetized from the views either. I understood that the Audiencia of ***LOCALITY.2, which is responsible for providing the recording to the media and the parties, had adopted measures to avoid the infringement of rights. All this scenario led me to believe that there was no controversy or infringement of rights. My actions respond to a mistaken or false representation of the judicial and media reality. In law, it is defined based on the scheme of dogmatic categories to be compared with the behavior of the person said to have committed a criminal offense; but also, with a scheme in which intent and negligence are part of the typicality, which from dogmatism assumes that a person performs typical conduct, as long as they know, understand, and self-determine their behavior in relation to the realization of the objective elements of the type (intent); and does not do so when acting based on a false representation of reality.”

6 - He requests that his circumstances be taken into account (...) for the purpose of determining the possible economic sanction. He provides as document 2, a copy of (...) dated 3/08/2023. He adds that (...) until November 2023, he provides document 2, (...) dated 2/11/2023, and document 3, considering that he would not deserve a sanction but a warning, in case it is not archived.

FIFTH: On 4/06/2024, a resolution proposal was issued with the following wording:

“-That the Director of the Spanish Agency for the Protection of Data sanctions B.B.B., with NIF

***NIF.1, for an infringement of article 5.1.c) of the GDPR, classified in article 83.5 of the GDPR,

qualified for the purposes of prescription as very serious in article 72.1.a) of the LOPDGDD, with a fine of 5,000 euros

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- Confirm the provisional measures imposed contained in the document addressed to GOOGLE on 4/08/2022, regarding the video located at: ***URL.1”

The notification is sent by postal mail on the same day, and after the time has elapsed, it is marked as “in progress.” Another shipment is made on 18/06/2024, with delivery attempts recorded on 2 and 3/07/2024, resulting in “absent,” leaving a notice at the office for collection from 4 to 10/07/2024, and being returned on 11/07/2024 due to the expiration of the collection period.

On 28/06/2024, it is decided to send it via messenger, with the delivery on 5/07/2024 marked as: absent, returned to sender. On 10/07/2024, it is published in the BOE in application of Article 44 of the LPACAP.

In the publication of the extract of the proposal, it was indicated:

“In the maximum period of 10 working days counted from the day following the publication of this announcement, the interested party for the purposes of this notification or their representative may request, proving their identity, a copy of the document corresponding to the indicated administrative act, for knowledge of its full content, requesting it through the Electronic Headquarters of the Agency (<https://sedeagpd.gob.es/sede-electronica-web/>), or appearing from Monday to Friday from 9:00 to 14:30 at the Citizen Attention Service of the Spanish Agency for Data Protection, Calle Jorge Juan, 6, 28001 Madrid.

If after this period no appearance has been made, the notification will be understood as practiced for all legal purposes from the day following the expiration of the maximum period indicated for appearance.”

SIXTH: On 2/08/2024, the respondent submits a document requesting the expiration and prescription of actions.

LEGAL GROUNDS

I Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II Expiration of the procedure

In the initiation agreement of 27/07/2023, it was indicated: “The procedure will have a maximum duration of 12 months from the date of the initiation agreement or, where appropriate, from the...”

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Draft agreement of initiation. After this period, it will expire, and consequently, the file of actions will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.”

Article 63 of the LOPDGD, which is framed in Title VIII “Procedures in case of possible violation of Data Protection regulations,” states:

“1. The provisions of this Title shall apply to the procedures processed by the Spanish Agency for Data

Protection in cases where an affected party claims that their request to exercise the rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679 has not been addressed, as well as in cases where it investigates the existence of a possible infringement of the provisions of the aforementioned regulation and this organic law.

2. The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

The initiation agreement was signed on 27/07/2023, and after the deadline for its resolution, which would have occurred on 27/07/2024, this had not taken place. Applying Article 21.1 of the LPACAP, it results:

“1. The Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their form of initiation.

In cases of prescription, waiver of the right, expiration of the procedure, or withdrawal of the request, as well as the subsequent disappearance of the object of the procedure, the resolution shall consist of the declaration of the circumstance that occurs in each case, with an indication of the facts produced and the applicable norms.”

Considering the effects provided for in Article 25 of the same regulation, which states:

“1. In procedures initiated ex officio, the expiration of the maximum established period without an express resolution being issued and notified does not exempt the Administration from the legal obligation to resolve, producing the following effects:

b) In procedures where the Administration exercises sanctioning powers or, in general, intervention powers that may produce unfavorable effects or burdens, expiration will occur. In these cases, the resolution declaring the expiration will order the filing of the actions, with the effects provided for in Article 95.”, which states:

“3. Expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose...”

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The content would have remained the same had the expiration not occurred. In any case, in the new procedure, the steps for allegations, proposal of evidence, and hearing of the interested party must be completed.”

Regarding the request made by the defendant for the “prescription of the actions,” it is understood that the defendant refers to the prescription of the facts that constitute the infringement attributed in the present procedure.

Well, the expiration of the procedure and the prescription of the infringements are two different issues. On this particular matter, Article 30 of the LPACAP states in its Article 30 that “1. The infringements and sanctions shall prescribe according to the provisions established in the laws that set them. If these do not set prescription periods, very serious infringements shall prescribe after three years, serious ones after two years, and minor ones after six months; sanctions imposed for very serious offenses shall prescribe after three years, those imposed for serious offenses after two years, and those imposed for minor offenses after one year.

2. The prescription period for infringements shall begin to run from the day the infringement was committed. In the case of continuous or permanent infringements, the period shall begin to run from the end of the infringing conduct. The prescription shall be interrupted by the initiation, with the knowledge of the interested party, of an administrative procedure of a sanctioning nature, restarting the prescription period if the sanctioning file has been paralyzed for more than one month for reasons not attributable to the alleged responsible party.”

The issues related to prescription are not to be resolved in this resolution, which is limited to declaring the expiration of the sanctioning procedure. Nevertheless, as has been expressed, the conditions exist for the expiration of the present sanctioning procedure to proceed; the expiration is without prejudice to the fact that, in case the facts are not prescribed, this Agency may carry out the actions that are appropriate.

The Director of the Spanish Agency for Data Protection,
RESOLVES:

FIRST: To declare the expiration of the procedure initiated against B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, presenting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of 1/10. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-16012024

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